

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 09
JUDICIAL OFFICER: JOHN P DEVINE
HEARING DATE: 12/15/2025

ALL REMOTE APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties may appear by Zoom unless told to appear by another method. For all other matters, if argument is requested, appearances may be by Zoom or in person

Please email Dept09@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1602392251?pwd=WmE4bG5iK0J3WWtTOHpteVBjRlBMQT09>

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02032

CASE NAME: TRENT ORMSBY VS. JEFFREY HULL

*HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT IF ENTERED.

FILED BY: HULL, JEFFREY SCOTT

TENTATIVE RULING:

Defendant Jeffrey Scott Hull's motion to set aside default is **denied without prejudice**.

According to the Notice of Motion, Defendant seeks relief from default pursuant to CCP § 473(b). In the body of the motion, however, Defendant asserts that he is proceeding under Civil Code § 1788.61. Civil Code § 1788.61 does not provide a basis to set aside the default entered in this action, as that statute applies only to collection actions brought by a debt buyer. Thus, the only potentially applicable authority on this motion is CCP § 473(b).

A party may seek relief under CCP § 473(b) due to "mistake, inadvertence, surprise, or excusable

neglect.” (CCP § 473(b).) However, an application for relief from default under § 473 must be made “within a reasonable time but in no instance exceeding six months after the judgment, dismissal, order, or proceeding was taken.” (*Id.*; *People v. The North River Ins. Co.* (2011) 200 Cal.App.4th 712, 721.) This six-month limit is jurisdictional, and the court has no authority under section 473(b) to excuse noncompliance with that deadline. (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 345.)

Although the motion references a later date, default was actually entered against Defendant Hull (as well as Defendant CBE Electric Company dba CB Construction & Design) on August 27, 2024. Accordingly, any request for relief under § 473(b) had to be filed no later than February 27, 2025. Defendant filed the present motion on August 25, 2025. Plaintiff opposes the motion but does not assert that it is time-barred; however, the six-month deadline is jurisdictional. Because the motion was filed more than six months after default was entered, Defendant cannot obtain discretionary relief under CCP § 473(b).

Equitable relief may still be available on grounds of extrinsic mistake, as such relief is not governed by the six-month time limit applicable to motions under CCP § 473(b). (*Olivera v. Grace* (1942) 19 Cal.2d 570, 576; *Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300.) To obtain equitable relief, a party must show: (1) a meritorious defense, (2) a satisfactory excuse for not presenting that defense, and (3) diligence in seeking to set aside the default once discovered. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982.)

The Court has not considered whether equitable relief might be available, as Defendant does not seek such relief in this motion.

As with all self-represented litigants, Defendant may wish to consult with an attorney regarding this matter.

2. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
TENTATIVE RULING:

This matter is continued to January 15, 2026, at 9 a.m. in Department 39.

A case management conference is scheduled in Department 39 for February 20, 2026, at 8:30 a.m. The case management conference presently set in Department 9 for March 13, 2026 at 8:30 a.m. is vacated.

Department 39 is re-assigned to this case for all purposes on December 15, 2025.

3. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: DAVID T. SEENO
TENTATIVE RULING:

The matter is continued to December 22, 2025 at 9:00 a.m. in Department 9.

4. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: PAT LUNDVALL**
FILED BY: A-S PIPELINES INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:

The motion to admit Pat Lundvall pro hac vice is granted.

5. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: KRISTEN T. GALLAGHER**
FILED BY: A-S PIPELINES INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:

The motion to admit Kristen Gallagher pro hac vice is granted.

6. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO DISQUALIFY PLAINTIFFS' COUNSEL FOR UNAUTHORIZED COLLECTION AND POSSESSION OF TAX RECORDS C24-02806**
FILED BY: EDEN VALLEY RANCH LLC
TENTATIVE RULING:

The matter is continued to December 22, 2025 at 9:00 a.m. in Department 9.

7. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
*HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: KRISTEN T. GALLAGHER C24-02806
FILED BY: EDEN VALLEY RANCH LLC
TENTATIVE RULING:

The motion to admit Kristen Gallagher pro hac vice is granted.

8. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
*HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE RE: PAT LUNDVALL C24-02806
FILED BY: EDEN VALLEY RANCH LLC
TENTATIVE RULING:

The motion to admit Pat Lundvall pro hac vice is granted.

9. 9:00 AM CASE NUMBER: C24-02210
CASE NAME: AMIRALI SHARIFY VS. MICHAEL C. SCRANTON, A PROFESSIONAL CORPORATION
*HEARING ON MINOR'S COMPROMISE RE: AMIRALI SHARIFY
FILED BY: SHARIFY, AMIRALI
TENTATIVE RULING:

The petition for minor's compromise is granted.

10. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST FOR PRODUCTION, SET ONE
FILED BY: PARK, YONGCHAN
TENTATIVE RULING:

Appearance required.

11. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFFS' SPECIAL INTERROGATORIES, SET ONE TO DEFENDANT MINHE, INC.
FILED BY: PARK, YONGCHAN
TENTATIVE RULING:

Appearance required.

12. 9:00 AM CASE NUMBER: C25-00272
CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN
HEARING IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: JESSE GRASTY, ESQ.
FILED BY: ACKERMAN, WAYNE
TENTATIVE RULING:

The motion to appear as counsel pro hac vice is granted.

13. 9:00 AM CASE NUMBER: C25-00291
CASE NAME: MONIQUE DERR VS. SC WALNUT CREEK, LLC
*HEARING ON MINOR'S COMPROMISE RE: COIL LEWIS. GARCIA
FILED BY: DERR, MONIQUE
TENTATIVE RULING:

The petition for minor's compromise is granted.

14. 9:00 AM CASE NUMBER: C25-01056
CASE NAME: AUDREY WILLIAMS VS. ROLLING HILLS MEMORIAL PARK
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: ROLLING HILLS MEMORIAL PARK
TENTATIVE RULING:

Hearing continued to January 26, 2026 at 9:00 a.m. for supplemental briefing. On or before January 12, 2026, parties shall file briefs, not to exceed seven pages each, addressing the following:

- Why this case should not be stayed pending the appeal in *Paula Frost v. Rolling Hills Memorial*

Park (Contra Costa County Superior Court Case No. C24-02653) given the overlapping issues and/or overlapping parties.

- Whether an arbitration contract may be modified or superseded after the death of one party, where the contract includes three or more parties. Notably, while defendant included argument on this point in the reply, plaintiff has not had the opportunity to respond. Defendant cited minimal authority outside the context of a deceased party's testamentary intent, which does not appear to be at issue here.

In addition to the supplemental briefing, the Court requests that, if in the possession of either party, "page 4 of 4" of the 2017 "Cemetery Agreement" be attached to a declaration (for ease of filing) and filed with the Court as it appears to have been omitted in the documents filed to date.

15. 9:00 AM CASE NUMBER: C25-01650

CASE NAME: SANDY PARK VS. RENE GAMBOA

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GAMBOA, RENE

TENTATIVE RULING:

Before the Court is a demurrer by defendants Rene Gamboa and Lewis Brisbois Bisgaard & Smith, LLP to Plaintiff's complaint. For the reasons set forth, the demurrer is **sustained, with leave to amend**.

Background

Plaintiff Sandy Park filed her complaint against her former attorney, Rene Gamboa, and his law firm, Lewis Brisbois Bisgaard & Smith, LLP (the "Firm") commencing this action on June 12, 2025. Plaintiff alleges that Gamboa and the Firm represented her as a plaintiff in a lease dispute with Nancy Kim beginning in March 2021. (Compl. ¶¶ 1, 5, 6.) The prior action out of which Plaintiff's claims against defendants arise is Case No. 19-CV-341095 in the Superior Court for the County of Santa Clara (the "Kim Action"). (See, e.g., Compl. Exhs. D and E-8, among others.)

Park alleges defendants filed an ex parte application to be relieved as Plaintiff's counsel six weeks before the trial in the Kim Action based on Kim's allegedly "fabricated" story that Kim's signature on an August 12, 2018 note containing the disputed lease extension was forged. (Compl. ¶¶ 1-3, 8, 10.) (Exhibit H to the complaint refers to a note dated August 12, 2019 – see Nanette Barto, CQDE Decl. ¶ 2.) Plaintiff alleges she was on vacation, was not aware of the ex parte application or order relieving defendants from their representation until July 31, 2023, and she did not have an opportunity to contest the application. (Compl. ¶¶ 2, 6.) After she returned from vacation, she sent Gamboa information she contends showed Kim's position on the forgery was false. (Compl. ¶ 11.)

Park alleges on July 24, 2023, Kim filed a motion for reconsideration of an order denying her motion for summary judgment in which Kim accused Park of the forgery and perjury, and which was set for hearing on August 24, 2023, but Kim withdrew the motion, apparently after the ex parte application and order allowing Park's counsel to withdraw, which Plaintiff interprets as evidence that Kim knew her position on the forgery was false. (Compl. ¶¶ 12, 25, 26.) She also alleges Gamboa contacted

Park's "signing expert" Nannette Barto on July 18, 2023 and conferred with her about the August 12 note without Park's permission. (Compl. ¶¶ 13, 16, 39, 40, 43.) She alleges these circumstances show Kim, the expert Nannette Barto, and Gamboa "worked together" and "coordinated their conduct." (Compl. ¶¶ 13, 26.)

Plaintiff alleges she was unable to obtain new counsel to represent her at the two-day trial. (Compl. ¶ 14.) She alleges Gamboa ended his attorney-client relationship with her on July 25, 2023, and that on December 20, 2023, a tentative ruling was issued against her in the Kim Action. (Compl. ¶¶ 18, 19.) She asserts Gamboa should have returned her \$5,000 retainer on July 25, 2023 when their attorney-client relationship ended. The Firm sent her a check in the amount of \$13,753.66 as a "refund" of part of the attorneys' fees. (Compl. ¶¶ 19, 52.) The check in that amount attached as part of Exhibit G to the complaint is dated December 22, 2023. She alleges Gamboa's conduct in being relieved as her counsel, among other things, caused her to lose her case. (Compl. ¶¶ 39-41, 50-52.)

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A general demurrer on statute of limitations grounds may be sustained if it "clearly and affirmatively" appears on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Note on Opposition Memorandum

The Court interprets Plaintiff's document styled "Reply" to demurrer and motion to strike as her "opposition" to the motion. The opposition is 14 pages. A table of contents and table of authorities is required for a memorandum that exceeds 10 pages. (Cal. R. Ct., Rule 3.1113(f).)

Procedural Note on Park Declaration Attached to Complaint and Declaration Attached to Opposition to Demurrer

Park attaches a declaration by her "in support of" her complaint. In her opposition to the demurrer, Park attaches a declaration and series of exhibits. In ruling on a demurrer, the Court does not consider evidence, except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994 ["In reviewing the ruling on a demurrer, a court cannot consider, as Mercury would have us do, the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. (Citations omitted.)"].)

Defendants' Request for Judicial Notice

In support of their demurrer, Defendants request the Court take judicial notice of court records from the Kim Action, including a Reply Memorandum with exhibits filed in connection with a summary judgment motion in the Kim Action (RJN Exh. 1), and a Statement of Decision and Judgment filed February 20, 2024 in the Kim Action (RJN Exh. 2). The Court **denies** Defendants' request for judicial notice of Exhibit 1 as irrelevant to the determination of the issues on the demurrer (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6) but **grants** the request as to Exhibit 2 pursuant to Evidence Code section 452(d).

Judicial notice of a prior order or judgment may be taken in ruling on a demurrer. (*Shine v. Williams Sonoma, Inc.* (2018) 23 Cal.App.5th 1070 [affirming judgment dismissing complaint on the grounds of res judicata based on prior litigation and a settlement in the prior litigation].) (*See also Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].) A demurrer may be sustained based on judicially noticed documents or facts, even if they contradict allegations of the complaint. (*Evans v. City of Berkeley, supra*, 38 Cal.4th at 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, alleged in the original complaint but not the operative complaint, from which both sides quoted and the Court found "no potential dispute exists as to the letter's language, allowing its consideration on demurrer"].) The Court does not take judicial notice of the truth of the findings or conclusions in the Statement of Decision and Judgment (RJN Exh. 2) to the extent reasonably disputable, but the Court takes judicial notice that the findings and conclusions were made, and the Statement of Decision and Judgment issued and filed with the Court in the Kim Action on the date stated on the face of the document, and their legal effect. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1570.)

Analysis

Plaintiff's complaint alleges causes of action for (a) breach of contract and professional negligence (1st C/A), breach of fiduciary duty (2nd C/A), and failure to return retainer (3rd C/A). Defendants' demurrer is made on the ground Plaintiff's claims are barred by the statute of limitations on the face of the complaint, and the complaint therefore fails to allege facts sufficient to state a cause of action against the defendants. (Code Civ. Proc. § 430.10(e).)

Code of Civil Procedure section 340.6(a) governs the statute of limitations on claims for attorney malpractice. The statute provides, "An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first." (Code Civ. Proc. § 340.6(a).) The statute also provides that the period for filing an action is tolled "during the time that any of the following exist: [¶] (1) The plaintiff has not sustained actual injury; [¶] (2) the attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred; . . . [¶] the plaintiff is under a legal or physical disability that restricts plaintiff's ability to commence legal action. . . ." (*Id.*)

The one-year statute of limitations of section 340.6 applies not only to a cause of action for attorney

malpractice but also to causes of action stemming from non-legal services incidental to the legal relationship "when the merits of the claim will necessarily depend on proof that an attorney violated a professional obligation—that is, an obligation the attorney has by virtue of being an attorney—in the course of providing professional services." (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1229, 1236-1237 [one-year bar "applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services. In this context, a 'professional obligation' is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the State Bar Rules of Professional Conduct."].) (*See also Quintilliani v. Mannerino* (1998) 62 Cal.App.4th 54, 68 [one-year statute of limitations applied to breach of contract and breach of fiduciary duty causes of action arising out of attorney-client relationship and legal services even though intertwined with non-legal services].)

A. Statute of Limitations Applicable to Plaintiff's Causes of Action

Plaintiff generally concedes that the one-year statute of limitations under Code of Civil Procedure section 340.6 applies, except that she argues that the four-year statute of limitations applies to her breach of contract claim. (Opp. p. 2, ll. 5-6.) Plaintiff titled her first cause of action as "breach of contract and professional negligence," and the allegations show that the first cause of action is directly tied to and based on defendants' alleged professional misconduct in rendering services to her under their engagement agreement. (Compl. ¶¶ 1-36.) The breach of fiduciary duty claim alleged in the second cause of action is similarly directly based on allegations of professional misconduct in defendants' rendering of legal services to Plaintiff as part of their engagement in the Kim Action. (Compl. ¶¶ 3, 38-44.) Further, Plaintiff expressly cites and relies on Rule of Professional Conduct 1.16(e)(2) and defendants' alleged violation of "ethical responsibilities" as the basis for her third cause of action for defendants' alleged failure to timely return her retainer. (Compl. p. 9, ll. 6 and 24.)

The causes of action as alleged by Plaintiff are all based on claims that defendants violated professional obligations they have by virtue of being attorneys in the course of rendering professional services to Plaintiff in the Kim Action. (*Lee v. Hanley, supra*, 61 Cal.4th at 1129.) Therefore, the one-year statute of limitations of Code of Civil Procedure section 340.6(a) applies to all causes of action alleged in the complaint.

B. Commencement of Statute of Limitations Based on Actual Injury

"Actual injury occurs when the client suffers any loss or injury legally cognizable as damages in a legal malpractice action based on the asserted errors or omissions. [Citations omitted.] Under the Legislature's codification of *Budd*, section 340.6, subdivision (a)(1), will not toll the limitations period once the client can plead damages that could establish a cause of action for legal malpractice." (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 743.)

Laird v. Blacker (1992) 2 Cal.4th 606 cited by Plaintiff, decided before the California Supreme Court's decision in *Jordache*, addressed when a client sustains "actual injury" for the statute of limitations to begin to run under Code of Civil Procedure section 340.6. Based on the facts and issues presented in that case, the Court held that the one-year time period to file a malpractice action "commences when a client suffers an adverse judgment or order of dismissal in the underlying action on which the

malpractice action is based." (*Id.* at 609, 615.) The Court rejected the plaintiff's contention that the statute of limitations is tolled while an appeal of the judgment or dismissal of the underlying action is pending. (*Id.* at 615.) "Section 340.6 and its legislative history make clear that once a client has been injured by an adverse judgment, the limitations period commences and is not tolled by filing an appeal absent continuous representation by the trial attorney. [Citation omitted.]" (*Id.* at 618.)

Courts distinguish between the fact of damage and the amount of damage in analyzing whether actual injury has occurred and the statute of limitations accrues. (*Id.* at 612.) Discovery of the fact of damage is enough to start the statute of limitations, even if the amount damages the plaintiff may ultimately sustain is uncertain. (*Id.* at 612, 613; *Jordache, supra*, 18 Cal.4th at 751, 752.) "A plaintiff need not suffer a *complete* loss of a right or reach final adjudication of an issue to sustain actual injury." (*Village Nurseries v. Greenbaum* (2002) 101 Cal.App.4th 26, 42 [italics in original].)

Plaintiff alleges that defendants' representation ended in July 2023, and that she lost her case against Kim in December 2023. (Compl. ¶¶ 18, 19.) She alleges defendants' professional malpractice was what caused her to lose her case, which she alleges occurred in December 2023 after her trial ended. (Compl. ¶¶ 14-17, 27, 32, 36, 38-41, 44, 52.) She alleges defendants should have refunded her retainer in July or August 2023 as soon as defendants formally withdrew as her counsel, which resulted in their "abandonment" of her and Park having to litigate her case through trial without attorney representation. (Compl. ¶¶ 18, 46, 49.) Plaintiff also alleges Gamboa improperly contacted the handwriting expert Nanette Barto, and based on that contact, she was forced to engage a new handwriting expert before the trial, another allegation indicating she may have suffered "actual injury" from defendants' alleged malpractice or other improper acts before December 2023. (Compl. ¶ 41.) She alleges she received some payment from the Firm in November 2023 and that after the trial concluded in December 2023, the Firm sent her a check refunding over \$13,000 in attorneys' fees, which she alleges was an admission of Gamboa's alleged misconduct and malpractice. (Compl. ¶¶ 19, 47, 52.)

These facts based on Plaintiff's own allegations show that (a) the attorney-client relationship ended by July or August 2023, and (b) she suffered "loss or injury legally cognizable as damages" from failure to return her retainer, having to engage a new handwriting expert, being forced to represent herself at trial, and losing at trial, allegations of actual injury beginning potentially as early as August 2023, or at the latest December 2023. Despite these allegations, she contends her causes of action did not accrue, and she did not suffer actual injury, until June 14, 2024. Plaintiff contends she alleged that judgments were entered in the Kim Action in June and July 2024, and that the statute of limitations did not commence under *Laird* until judgment was entered.

First, Plaintiff does not allege in her complaint that the entry of a final judgment in June 2024 was when she sustained actual injury. The only reference to the June 2024 judgment is in Plaintiff's prayer for relief. " '[T]he prayer is not part of the cause of action . . . ' [Citation omitted.]" (*Spotlight on Coastal Corruption v. Kinsey* (2020) 57 Cal.App.5th 874, 884 [addressing complaint labeled petition for writ of mandate but in which no reference to writ of mandate appeared in the body of the causes of action alleged, stating "Either the Complaint adequately alleges facts entitling Spotlight to a writ of mandate or it does not. Seeking a writ in the prayer adds nothing to that determination."]; *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1535-1536 [" 'The prayer for relief is no part of the statement of fact, and the fact that too much is asked for does not affect the cause of action stated.'

"); *Standard Brands of California v. Bryce* (1934) 1 Cal.2d 718, 721 ["The subject matter of an action and the issues involved are determinable from the facts pleaded, rather than from the title or prayer for relief. [Citation omitted.]"].)

Second, even if the reference in the prayer to judgments entered in June or July 2024 could be considered in evaluating the sufficiency of the causes of action alleged, the Statement of Decision and Judgment by the Court attached as Exhibit 2 to Defendants' Request for Judicial Notice shows the decision and judgment against Plaintiff was issued and filed in the Kim Action on February 20, 2024. (Def. RJN Exh. 2.) Notably, Plaintiff has attached numerous documents to the complaint and her opposition to the demurrer, but she has not attached the "judgments" she asserts were entered in the Kim Action in June and July 2024, and she has not addressed the February 20, 2024 Statement of Decision and Judgment in her opposition.

In any event, though actual injury is alleged in the complaint between August and December 2023, the filed February 20, 2024 Statement of Decision and Judgment entered in the Kim Action is an "adverse judgment" under *Laird* and "actual injury" under *Jordache* sufficient to commence the statute of limitations not later than that date. Even if subsequent "judgments" were entered in the case based on the Statement of Decision and Judgment entered on February 20, 2024, Plaintiff cites no authority that would not make the statute of limitations commence based on entry of the Statement of Decision and Judgment on February 20, 2024 under *Laird*, *Jordache*, and the actual injury provision of Code of Civil Procedure section 340.6(a).

Conclusion on Demurrer Based on Statute of Limitations and Whether to Grant Leave to Amend

Based on Plaintiff's own allegations and the February 20, 2024 Statement of Decision and Judgment of which the Court takes judicial notice, the complaint "clearly and affirmatively" demonstrates that the claims alleged by Plaintiff are barred by the statute of limitations. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee v. Hanley, supra*, 61 Cal.4th at 1232.) Plaintiff commenced this action in June 2025, months after the one-year statute of limitations of Code of Civil Procedure section 340.6 had expired.

Plaintiff in her opposition asks for leave to amend if the demurrer is sustained, but Plaintiff does not explain what additional facts she can allege to demonstrate that her claims are not barred by the statute of limitations. Nevertheless, given that this is the first time the Court has reviewed the merits of Plaintiff's claims, the Court will grant Plaintiff to amend to try to state claims that are not time-barred under Code of Civil Procedure section 340.6.

16. 9:00 AM CASE NUMBER: L23-03430
CASE NAME: TALBOT LAW GROUP, P.C., VS. TIFFANY COOPER
HEARING IN RE: MOTION FOR RECONSIDERATION OF SANCTIONS ORDER
FILED BY:
TENTATIVE RULING:

Appearance required.

17. 9:00 AM CASE NUMBER: MSC20-00566
CASE NAME: BENITEZ VS. STILLWATER INSURANCE COMPANY
*HEARING ON MOTION IN RE: LEAVE TO FILE TO FIRST AMENDED COMPLAINT
FILED BY: BENITEZ, JOHN
TENTATIVE RULING:

Before the Court is a motion by plaintiffs for leave to file a first amended complaint. For the reasons set forth, the motion is granted. Plaintiffs shall file their first amended complaint **by December 29, 2025.**

Background

This case involves an insurance dispute between plaintiffs and their insurer Stillwater Insurance Company following a fire at their residence. Plaintiffs' original complaint included a single cause of action for breach of the implied covenant of good faith and fair dealing against Stillwater.

After filing the complaint, an arbitration was held by an appraisal panel that determined an "actual cash value" (ACV) for their losses in an appraisal award issued in July 2022 ("first appraisal award"). (Kerley Decl. Exh. B [Prop. First Amended Complaint ("FAC") ¶ 21].) On motion, the Court vacated the first appraisal award. (FAC ¶ 22.) A second arbitration was conducted, and a second appraisal award was issued in November 2024 in which the appraisal panel determined the replacement cost value (RCV) of Plaintiffs' claimed losses was approximately \$201,000. (Prop. FAC ¶ 23; Yu Decl. ¶ 9 and Exh. 6.)

Plaintiffs allege in their proposed FAC that after the November 2024 second appraisal award with the \$201,000 RCV determination was confirmed, they made a claim to Stillwater on their policy for over \$596,000, which they allege Stillwater improperly denied. (Kerley Decl. Exh. B [Prop. FAC ¶¶ 24, 25].) Plaintiffs state that the proposed FAC eliminates claims that have been resolved concerning personal property losses and additional living expenses. (Kerley Decl. ¶ 2.) Plaintiffs also contend the proposed FAC addresses "Stillwater's refusal to pay replacement-cost benefits for repair of the dwelling following substantial completion of the repairs. The amendment also adds a narrowly drawn cause of action for declaratory relief, allowing the Court, in its discretion, to determine whether Stillwater's payment of the November 2024 appraisal award constitutes a proper basis to deny replacement-benefits coverage under Insurance Code § 2051.5." (Kerley Decl. ¶ 2.)

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (*See* Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (*See also* Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.

[Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

Analysis

The proposed FAC includes a first cause of action for declaratory relief and a second cause of action for insurance bad faith. The proposed FAC alleges that the second appraisal award failed to address the replacement value of damaged areas and damaged items claimed by Plaintiffs as to which Stillwater disputes the scope of coverage or that the fire caused the claimed loss. (Prop. FAC ¶¶ 29, 31.) Stillwater contends these paragraphs of the proposed amended complaint mischaracterizes the second appraisal award. Stillwater's opposition includes a copy of the award and quotes provisions of that award that appear to belie those allegations. (Yu Decl. ¶ 9 and Exh. 6, p. 2, quoted at Opp. p. 7, ll. 15-26.) Plaintiffs' reply does not contest Stillwater's position in this regard, but whether those allegations are accurate or not does not necessarily preclude allowing Plaintiff's leave to file their amended pleading.

Stillwater also contends the new first cause of action of the proposed FAC is barred by the second appraisal award, which is binding on Plaintiffs as to the RCV to which they are entitled. Plaintiffs argue they are not challenging or collaterally attacking the determinations made in the second appraisal award. Plaintiffs assert in their reply that the second appraisal award does not preclude them from seeking the actual costs they incurred in completing their repairs, including those for the areas of disputed damage despite the RCV for losses determined in the second appraisal award. They contend that the second appraisal award does not bar their declaratory relief claim because the second appraisal award is "prospective," and merely a predicted an estimate of the repair costs, while the "replacement costs benefit" provided in their policy is "retrospective." (Prop. FAC ¶¶ 29-31.) They contend that the second appraisal award only provided a "hypothetical" ACV/RCV determination as of the date of the loss but did not determine, or foreclose a determination, that they have a statutory right to a different replacement cost value based on the actual costs they incurred when the repairs were completed under Insurance Code section 2051.5 and their policy. (Reply p. 3, l. 22 – p. 4, l. 5.) Plaintiffs argue the policy terms and Insurance Code section 2051.5 make Stillwater liable for the "actual, reasonable, and necessary cost to repair the dwelling up to the limits of the Policy" once the actual amount is determined after the repairs are completed.

The Court agrees with Stillwater that Plaintiffs' position raises the question of what purpose is served by an appraisal arbitration of the RCV if the RCV amount determined in the arbitration, not just the scope of damage covered by the policy or cause of the loss, can still be litigated. Nevertheless, the Court agrees with Plaintiff that a motion for leave to amend is not the appropriate vehicle for the Court to determine the merits of Plaintiffs' theory under Insurance Code section 2051.5 regarding the legal effect of the second appraisal award. Arguments regarding the merits of the claims alleged in the proposed FAC are more properly addressed in a challenge to the FAC after it is filed, whether by demurrer, motion to strike, motion for judgment on the pleadings, or motion for summary judgment. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["T]he preferable practice would be to permit the amendment and

allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

The futility doctrine relied on by Stillwater has typically been applied to deny a motion for leave to amend where, for example, the claim is clearly barred by a failure to exhaust administrative remedies or is clearly barred by the statute of limitations. (See, e.g., *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390 [granting petition for writ of mandate and reversing trial court's denial of leave to amend answer to add novel affirmative defense]; *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230 [proposed amendment barred by statute of limitations and no basis for "relation back"]; *Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110, 1124 [denial of leave to amend petition for writ of mandate affirmed because amended claim barred by statute of limitations].)

No trial date is set in the case, and discovery is ongoing. A continued case management conference is set for January 13, 2026, and there are a series of discovery motions scheduled in June 2026. Stillwater has not shown prejudice if the amended complaint is allowed to be filed, other than having to attempt to defeat the amended claims on the merits. Stillwater will have the opportunity to challenge the merits of amended claim by means other than opposition to this motion. Given the liberal policy of allowing amendment of pleadings, and the lack of a showing of prejudice, the Court will follow the "preferable practice" and not test the legal merit of the FAC on this motion.

18. 9:00 AM CASE NUMBER: MSC21-00636
CASE NAME: THUAT TON-HARMON VS. FPI MANAGEMENT, INC.
***HEARING ON MOTION IN RE: SET TRIAL DATE**
FILED BY: TON-HARMON, THUAT
TENTATIVE RULING:

Appearance required.

19. 9:00 AM CASE NUMBER: N25-1806
CASE NAME:
***HEARING ON MINOR'S COMPROMISE PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS FILED ON 9-10-25 BY NOAH BINSOL**
FILED BY:
TENTATIVE RULING:

The petition for minor's compromise is approved.

20. 9:01 AM CASE NUMBER: C23-01991
CASE NAME: VERA ASH VS. BAY AREA SURGICAL SPECIALISTS LLC
*HEARING ON MOTION FOR DISCOVERY HAVE FACTS DEEMED ADMITTED
FILED BY: EPIC CARE
TENTATIVE RULING:

Vacated.

21. 9:01 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPPIE VS. MISTY LEONE
*HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE
RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS
FILED BY: LEONE, MISTY
TENTATIVE RULING:

Hearing continued to January 12, 2026, at 9:00 a.m. in Department 34.

22. 9:01 AM CASE NUMBER: C23-00896
CASE NAME: JULIAN MIJARES VS. BRENTWOOD UNION SCHOOL DISTRICT
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS
FILED BY: BRENTWOOD UNION SCHOOL DISTRICT
TENTATIVE RULING:

This discovery motion is referred to the appointed discovery referee, Jay Chafetz.

Law & Motion
Add On

9:01 AM CASE NUMBER: C22-01835
CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA
*HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF MICHAELA STRAZNICKA'S FURTHER
RESPONSES TO SPECIAL INTERROGATORIES, SET 4
FILED BY:

TENTATIVE RULING:

Appearance required. The court will call this matter first at 9:00 a.m.